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Title 33 —Navigation and Navigable Waters

Chapter I —Coast Guard, Department of Homeland Security

Subchapter N —Outer Continental Shelf Activities

Part 146 Operations

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PART 146—OPERATIONS

Authority: 43 U.S.C. 1333, 1348, 1350, 1356; 46 U.S.C. 70001, 70116; sec. 109, Pub. L. 109-347, 120 Stat. 1884; Department of Homeland Security Delegation No. 00170.1, Revision No. 01.4.

Source: CGD 78-160, 47 FR 9383, Mar. 4, 1982, unless otherwise noted.

Subpart A—OCS Facilities

§ 146.1 Applicability.

Unless otherwise specified, the provisions of this subpart apply to OCS facilities except mobile offshore drilling units.

[USCG-2013-1057, 91 FR 39484, June 30, 2026]

§ 146.5 Person in charge.

- (a) The owner or operator, or the agent of either of them, shall designate by title and in order of succession the persons on each OCS facility who shall be the “person in charge.”
- (b) In case an emergency arises, nothing in the regulations in this subchapter shall be so construed as preventing the person in charge from pursuing the most effective action in that person's judgement for rectifying the conditions causing the emergency.

§ 146.10 Notice of new facilities.

- (a) The owner or operator of each OCS facility not in operation before April 5, 1982 shall, at least 30 days before the date on-site construction of the facility is expected to commence, notify the District Commander for the area in which the facility will be located of:
 - (1) The position in which the facility will be operated;
 - (2) The designation assigned to the facility for identification under 30 CFR 250.37;
 - (3) The date when operation of the facility is expected to commence; and
 - (4) The date when the facility is expected to be available for inspection by the Coast Guard.
- (b) The information required in paragraph (a) of this section may be submitted together with a need not repeat information submitted in connection with the application and notice requirements in 33 CFR part 67 for aids to navigation on the Outer Continental Shelf.

§ 146.15 Maintenance of emergency equipment.

- (a) The emergency equipment provided, regardless of whether or not required by this subchapter, shall be maintained in good condition at all times. Good operating practices require replacement of expended equipment, as well as periodic renewal of those items which have a limited period of effectiveness.

- (b) Each personal flotation device light that has a non-replaceable power source must be replaced on or before the expiration date of the power source.
- (c) Each replaceable power source for a personal flotation device light must be replaced on or before its expiration date and the light must be replaced when it is no longer serviceable.

§ 146.20 Work vests.

- (a) **Types of approved work vests.** Each buoyant work vest carried under the permissive authority of this section must be approved under—
 - (1) 46 CFR 160.053; or
 - (2) 46 CFR 160.077 as a commercial hybrid PFD.
- (b) **Use.** Approved buoyant work vests are considered to be items of safety apparel and may be carried aboard OCS facilities to be worn by persons employed thereon when working near or over the water. The use and control of such vests shall be under the supervision of the person in charge of the facility. When carried, such vests shall not be accepted in lieu of any portion of the required number of approved life preservers and shall not be substituted for the approved life preservers required to be worn during drills and emergencies.
- (c) **Stowage.** The work vests shall be stowed separately from the regular stowage of approved life preservers. The location for the stowage of work vests shall be such as not to be easily confused with that for approved life preservers.
- (d) **Inspections.** Each work vest shall be subject to examination by a marine inspector to determine its serviceability. If found to be satisfactory, it may be continued in service, but shall not be stamped by a marine inspector with a Coast Guard stamp. If a work vest is found not to be in a serviceable condition, then such work vest shall be removed from the OCS facility. If a work vest is beyond repair, it shall be destroyed or mutilated in the presence of a marine inspector so as to prevent its continued use as a work vest.
- (e) **Additional requirements for hybrid work vests.** Commercial hybrid PFD's must, in addition to the other requirements in this section, be—
 - (1) Used, stowed, and maintained in accordance with—
 - (i) The procedures set out in the manual required for these devices by 46 CFR 160.077-29; and
 - (ii) Any limitation(s) marked on them; and
 - (2) Of the same or similar design and have the same method of operation as each other hybrid PFD carried on board.

[CGD 78-160, 47 FR 9383, Mar. 4, 1982, as amended by CGD 78-174A, 51 FR 4339, Feb. 4, 1986]

§ 146.30 Notice of casualties.

- (a) The owner, operator, or person in charge of a fixed OCS facility must ensure that the Coast Guard is notified as soon as possible after a casualty occurs, and by the most rapid means available, of each casualty involving the facility which results in:
 - (1) Death;

- (2) Injury to five or more persons in a single incident;
- (3) Damage affecting the usefulness of primary lifesaving or firefighting equipment;
- (4) Injury causing any person to be incapacitated for more than 72 hours; or
- (5) Damage to the facility exceeding \$75,000 resulting from a collision by a vessel with the facility.
- (b) The notice required by paragraph (a) of this section must identify the person giving the notice and the facility involved and describe, insofar as practicable, the nature of the casualty and the extent of injury to personnel and damage to property.
- (c) Damage costs referred to in paragraph (a)(5) of this section include the cost of labor and material to restore the facility to the service condition which existed prior to the casualty, but does not include the cost of salvage, cleaning, or gas freeing of the facility.
- (d) The owner, operator, or person in charge of any floating OCS facility must report casualties in accordance with 46 CFR part 4.
- (e) The owner, operator, or person in charge of a foreign floating OCS facility must include in the written casualty report required under 46 CFR 4.05-12 information relating to alcohol or drug involvement.

[USCG-2013-1057, 91 FR 39484, June 30, 2026]

§ 146.35 Written report of casualty.

- (a) In addition to the notice of a casualty required by § 146.30, the owner, operator, or person in charge shall, within 10 days of the casualty, submit to the Officer in Charge, Marine Inspection, a written report which:
 - (1) Identifies the facility involved, its owner, operator, and person in charge;
 - (2) Describes the casualty, including the date and time;
 - (3) Describes the nature and extent of injury to personnel and damage to property;
 - (4) Describes the factors which may have contributed to causing the casualty;
 - (5) Gives the name, address, and phone number of persons involved in or witnessing the casualty; and
 - (6) Gives any desired comments, especially with respect to use of or need for emergency equipment.
 - (7) Includes information relating to alcohol or drug involvement as specified in the vessel casualty reporting requirements of 46 CFR 4.05-12.
- (b) The written report required by paragraph (a) of this section may be—
 - (1) In narrative form if all appropriate parts of Form CG-2692 are addressed;
 - (2) On Form CG-2692 for casualties resulting in property damage, personnel injury, or loss of life.
- (c) If filed or postmarked within 5 days of the casualty, the written report required by paragraph (a) of this section serves as the notice required by § 146.30(b).

(Approved by the Office of Management and Budget under control number 1625-0001)

[CGD 78-160, 47 FR 9383, Mar. 4, 1982, as amended by CGD 82-023a, 47 FR 35741, Aug. 16, 1982; CGD 82-023a, 48 FR 43174, Sept. 22, 1983; CGD 84-099, 52 FR 47533, Dec. 14, 1987; USCG-2006-25150, 71 FR 39209, July 12, 2006]

§ 146.40 Diving casualties.

Diving related casualties are reported in accordance with 46 CFR 197.484 and 197.486.

§ 146.45 Pollution incidents.

Oil pollution incidents involving an OCS facility are reported in accordance with §§ 135.305 and 135.307 of this chapter. Additional provisions concerning liability and compensation because of oil pollution are contained in Subchapter M of this chapter.

Subpart B—Manned OCS Facilities

§ 146.101 Applicability.

The provisions of this subpart apply only to manned OCS facilities except mobile offshore drilling units.

§ 146.102 Definitions.

For the purpose of this subpart:

Arrives on the OCS means when a floating facility enters any OCS block area for the purpose of engaging in operations subject to the jurisdiction of the OCS Lands Act.

OCS block area means the names given by the Bureau of Ocean Energy Management, (BOEM) to define the OCS areas used to facilitate management or leasing on the OCS.

U.S., as used in the term, “U.S. floating facility,” means a “floating facility,” that is registered, documented, or certificated under the laws of the United States or that is not registered, documented, or certificated under the laws of the United States or any other nation.

[USCG-2008-1088, 76 FR 2260, Jan. 13, 2011, as amended by USCG-2013-0797, 79 FR 36405, June 27, 2014]

§ 146.103 Safety and Security notice of arrival for U.S. floating facilities.

- (a) **General.** At least 96 hours before a U.S. floating facility arrives on the OCS from a foreign port or place or from a different OCS block area, excluding those U.S. floating facilities arriving directly from a U.S. port or place, to engage in OCS activities, the owner or operator of the floating facility, except as provided in paragraph (f) of this section, must submit the following information to the National Vessel Movement Center (NVMC):
- (1) The location, latitude and longitude, of the floating facility at the time the notice of arrival (NOA) is reported;
 - (2) The area designation, block number or lease number, assigned under 30 CFR 250.154 for identification, where the owner or operator of the floating facility plans to perform OCS activities;
 - (3) The floating facility's name, if any;
 - (4) The date when OCS operations of the floating facility are expected to begin and end;
 - (5) Names of the last two ports or places visited and the associated dates of arrival and departure;
 - (6) The following information for each individual onboard:

- (i) Full name;
 - (ii) Date of birth;
 - (iii) Nationality;
 - (iv) Passport number or marine documentation number (type of identification and number);
 - (v) Position or duties on the floating facility; and
 - (vi) Name of the port, or place, and country where the individual embarked.
- (b) **Methods of submission.** The notice must be submitted to the NVMC by electronic Notice of Arrival and Departure format using methods specified in the NVMC's Web site at <http://www.nvmc.uscg.gov/>.
- (c) **Updates to a submitted NOA.** Unless otherwise specified in this section, whenever the most recently submitted NOA information becomes inaccurate, the owner or operator of a U.S. floating facility must revise and re-submit the NOA within the times required in paragraph (e) of this section. An owner or operator does not need to revise or re-submit an NOA for the following:
 - (1) A change in submitted arrival time that is less than 6 hours;
 - (2) Changes in the location, latitude and longitude, of the floating facility from the location at the time the NOA was reported; or
 - (3) Changes to personnel positions or duties on the floating facility.
- (d) **Required reporting time of an initial NOA.** The owner or operator of a U.S. floating facility subject to this section must submit an initial NOA:
 - (1) If the voyage time is more than 96 hours, owners or operators of a floating facility must submit an initial NOA at least 96 hours before the U.S. floating facility arrives at the OCS location where the owner or operator plans to perform OCS activities; or
 - (2) If the voyage time is less than 96 hours, owners and operators of a floating facility must submit an initial NOA at least 24 hours before the U.S. floating facility arrives at the OCS location where the owner or operator plans to perform OCS activities.
- (e) **Required reporting time of an update to an NOA.** The owner or operator of each floating facility subject to this section must submit an NOA update:
 - (1) If the most recently submitted NOA, or NOA update, differs by 24 hours or more from the current estimated time of arrival, the owner or operator of the floating facility must provide an updated NOA as soon as practicable but at least 24 hours before the U.S. floating facility arrives at the OCS location where the owner or operator plans to perform OCS activities; or
 - (2) If the most recently submitted NOA, or NOA update, differs by less than 24 hours from the current estimated time of arrival, the owner or operator of the floating facility must provide an update as soon as practicable but at least 12 hours before the U.S. floating facility arrives at the OCS location where the owner or operator plans to perform OCS activities.
- (f) **Towing vessels.** When a towing vessel controls a U.S. floating facility required to submit an NOA under this subpart, the owner or operator of the towing vessel, or lead towing vessel if there is more than one, is responsible for submitting only one NOA containing the NOA information items required for the towing vessels, under § 146.405, and the U.S. floating facility under paragraph (a) of this section.

- (g) This section does not apply to U.S. floating facilities merely transiting the waters superjacent to the OCS and not engaged in OCS activities.

[USCG-2008-1088, 76 FR 2260, Jan. 13, 2011]

§ 146.104 Safety and Security notice of arrival for foreign floating facilities.

- (a) **General.** At least 96 hours before a foreign floating facility arrives on the OCS from a foreign port or place or from a different OCS block area to engage in OCS activities, the owner or operator of the floating facility, except as provided in paragraph (f) of this section, must submit the following information to the National Vessel Movement Center (NVMC):
- (1) The location, latitude and longitude, of the foreign floating facility at the time the NOA is reported;
 - (2) The area designation, block number or lease number, assigned under 30 CFR 250.154 for identification, where the owner or operator of the foreign floating facility plans to perform OCS activities;
 - (3) The foreign floating facility's name, if any;
 - (4) The date when OCS operations of the foreign floating facility are expected to begin and end;
 - (5) Names of the last two ports or places visited and the associated dates of arrival and departure;
 - (6) The following information for each individual onboard:
 - (i) Full name;
 - (ii) Date of birth;
 - (iii) Nationality;
 - (iv) Passport number or marine documentation number (type of identification and number);
 - (v) Position or duties on the foreign floating facility; and
 - (vi) Name of the port, or place, and country where the individual embarked.
 - (7) The date of issuance of the foreign floating facility's International Safety Management certificate (ISM), if any, and Document of Compliance certificate and the name of the flag administration, or its recognized representative, that issued those certificates; and
 - (8) The date of issuance of the foreign floating facility's International Ship Security certificate (ISSC), if any, and the name of the flag administration, or the recognized security organization representing the flag administration, that issued the ISSC.
- (b) **Methods of submission.** The notice must be submitted to the National Vessel Movement Center by electronic Notice of Arrival and Departure format using methods specified at the NVMC's Web site at <http://www.nvmc.uscg.gov/>.
- (c) **Updates to a submitted NOA.** Unless otherwise specified in this section, whenever the most recently submitted NOA information becomes inaccurate, the owner or operator of the foreign floating facility must revise and re-submit the NOA within the times required in paragraph (e) of this section. An owner or operator does not need to revise or re-submit an NOA for the following:
- (1) A change in submitted arrival time that is less than 6 hours;

- (2) Changes in the location, latitude and longitude, of the floating facility from the location at the time the NOA was reported; or
 - (3) Changes to personnel positions or duties on the foreign floating facility.
- (d) **Required reporting time of an initial NOA.** The owner or operator of a foreign floating facility subject to this section must submit an initial NOA:
 - (1) If the voyage time is more than 96 hours, owners or operators of a foreign floating facility must submit an initial NOA at least 96 hours before the foreign floating facility arrives at the OCS location where the owner or operator plans to perform OCS activities; or
 - (2) If the voyage time is less than 96 hours, the owner or operator of a foreign floating facility must submit an initial NOA at least 24 hours before the foreign floating facility arrives at the OCS location where the owner or operator plans to perform OCS activities.
- (e) **Required reporting time of an update to an NOA.** The owner or operator of a foreign floating facility subject to this section must submit an NOA update:
 - (1) If the most recently submitted NOA, or NOA update, differs by 24 hours or more from the current estimated time of arrival, the owner or operator of the foreign floating facility must provide an updated NOA as soon as practicable but at least 24 hours before the floating facility arrives at the OCS location where the owner or operator plans to perform OCS activities; or
 - (2) If the most recently submitted NOA, or NOA update, differs by less than 24 hours from the current estimated time of arrival, the owner or operator of the foreign floating facility must provide an updated NOA as soon as practicable but at least 12 hours before the floating facility arrives at the OCS location where owners or operators plan to perform OCS activities.
- (f) **Towing vessels.** When a towing vessel controls a foreign floating facility required to submit an NOA under this subpart, the owner or operator of the towing vessel, or lead towing vessel if there is more than one, is responsible for submitting only one NOA containing the NOA information items required for towing vessels, under § 146.405, and the foreign floating facility under paragraph (a) of this section.
- (g) This section does not apply to a foreign floating facility merely transiting the waters superjacent to the OCS and not engaged in OCS activities.

[USCG-2008-1088, 76 FR 2261, Jan. 13, 2011]

§ 146.105 General alarm system.

Each manned facility must have a general alarm system. When operated, this system shall be audible in all parts of the structure on which provided.

§ 146.110 Emergency signals.

- (a) The owner, the owner's agent, or the person in charge shall establish emergency signals to be used for calling the personnel to their emergency stations.
- (b) The signal to man emergency stations shall be an intermittent signal on the general alarm system for not less than 10 seconds. The abandon facility signal shall be a continuous signal on the general alarm system.

§ 146.115 Duties of personnel during an emergency.

- (a) The owner, the owner's agent, or the person in charge shall assign to each person on a manned facility special duties and duty stations so that in event an emergency arises confusion will be minimized and no delay will occur with respect to the use or application of equipment required by this subchapter. The duties shall, as far as possible, be comparable with the regular work of the individual.
- (b) The duties shall be assigned as necessary for the proper handling of any emergency, and shall include the following:
 - (1) The closing of air ports, watertight doors, scuppers, and sanitary and other discharges which lead through the facility's hull.
 - (2) The stopping of fans and ventilation systems.
 - (3) The donning of life preserves.
 - (4) The preparation and launching of life floats, lifeboats, or life rafts.

§ 146.120 Manning of survival craft.

The owner, the owner's agent, or the person in charge shall assign a person to each life float, lifeboat, life raft, or survival capsule who shall be responsible for launching it in event of an emergency.

§ 146.125 Emergency drills.

- (a) Emergency drills shall be conducted at least once each month by the person in charge of the manned facility. The drill shall be conducted as if an actual emergency existed. All personnel should report to their respective stations and be prepared to perform the duties assigned to them.
- (b) The person in charge and conducting the emergency drill shall instruct the personnel as necessary to insure that all persons are familiar with their duties and stations.
- (c) **Emergency evacuation drills.** The following emergency evacuation drills must be conducted:
 - (1) At least once a year, all the elements of the Emergency Evacuation Plan (EEP) under § 146.140 relating to the evacuation of personnel from the facility must be exercised through a drill or a series of drills. The drill(s) must exercise all of the means and procedures listed in the EEP for each circumstance and condition described in the EEP under § 146.140(d)(9).
 - (2) At least once a month, a drill must be conducted that demonstrates the ability of the facility's personnel to perform their duties and functions on the facility, as those duties and functions are described in the EEP. If a standby vessel is designated for that facility in the EEP, the vessel must be positioned as described in the EEP for an evacuation of that facility and the vessel's crew must demonstrate its ability to perform its duties and functions under the EEP.
- (d) The date and time of such drills shall be reported in writing by the person in charge at the time of the drill to the owner who shall maintain this report record for a year and furnish it upon request to the Coast Guard. After one year, such records may be destroyed. When it is impossible to conduct emergency drills as required by this section during a particular calendar month, during the following month, a written report by the owner shall be submitted to the Officer in Charge, Marine Inspection, stating why the drills could not be conducted.

(Approved by the Office of Management and Budget under control number 1625-0018)

[CGD 78-160, 47 FR 9383, Mar. 4, 1982, as amended by CGD 84-098b, 54 FR 21572, May 18, 1989; USCG-2006-25150, 71 FR 39209, July 12, 2006]

§ 146.130 Station bill.

- (a) The person in charge of each manned platform shall be responsible for and have prepared a station bill (muster list). This station bill must be signed by the person in charge. Copies shall be duly posted in conspicuous locations on the manned platform.
- (b) The station bill shall set forth the special duties and duty stations of each member of the personnel for any emergency which involves the use or application of equipment required by this subchapter. In addition, it shall contain all other duties assigned and considered as necessary for the proper handling of other emergencies.
- (c) The station bill shall contain the various signals to be used for calling the personnel to their emergency stations, and to abandon the facility.

(Approved by the Office of Management and Budget under OMB control number 2115-0542)

[CGD 78-160, 47 FR 9383, Mar. 4, 1982, as amended by CGD 86-011, 51 FR 5712, Feb. 18, 1986]

§ 146.135 Markings for emergency equipment.

- (a) Markings shall be provided as considered necessary for the guidance of persons on manned facilities.
- (b) The general alarm bell switches shall be identified by red letters at least one inch high with a contrasting background: "General Alarm."
- (c) All general alarm bells shall be identified by a sign at each bell in red letters at least one inch high with a sharp contrasting background: "General Alarm—When Bell Rings Go to Your Station."
- (d) All life floats, lifeboats, life rafts, and survival capsules, together with paddles or oars, shall be conspicuously marked with a name or number of, or other inscription identifying, the facility on which placed. The number of persons allowed on each life float, lifeboat, or life raft shall be conspicuously marked thereon in letters and numbers 1¹/₂ inches high. These numbers shall be placed on both sides of the life float, lifeboat, or life raft. Inflatable life rafts shall be marked in accordance with subpart 160.051 of 46 CFR part 160 and no additional markings are required.
- (e) All life preservers and ring life buoys shall be marked with the name or number of, or other inscription identifying, the facility on which placed except those which accompany mobile crews to unmanned platforms may be marked with the operator's name and field designation.

§ 146.140 Emergency Evacuation Plan.

- (a) The operator of each manned OCS facility shall develop an Emergency Evacuation Plan (EEP) for the facility which addresses all of the items listed in paragraph (d) of this section. The EEP may apply to more than one facility, if the facilities are located in the same general geographic location and within the same Coast Guard Officer in Charge, Marine Inspection (OCMI) zone; if each facility covered by the EEP is specifically identified in the EEP; and if the evacuation needs of each facility are accommodated. The EEP must be submitted to the OCMI having jurisdiction over the facility, 30 days before placing the facility in operation. The OCMI reviews the EEP to determine whether all items listed in paragraph (d) of this section are addressed for each facility included in the EEP. If the OCMI determines that all items in paragraph (d)

of this section are addressed, the OCMI stamps the EEP "APPROVED" and returns it, together with a letter indicating Coast Guard approval, to the operator. If the OCMI determines that any item is not addressed, the OCMI stamps the EEP "RETURNED FOR REVISION" and returns the EEP, together with an explanation of the EEP's deficiencies, to the operator.

- (b) Once the EEP is approved under paragraph (a) of this section, the facility operator shall ensure that a copy of the EEP and the letter indicating Coast Guard approval is maintained on the facility.
- (c) The EEP must be resubmitted for approval when substantive changes are made to the EEP. Only the pages affected by a change need be resubmitted if the EEP is bound in such a way as to allow old pages to be removed easily and new ones inserted. Substantive changes include, but are not limited to, installation of a new facility within the area covered by an EEP, relocation of a MODU, changes in the means or methods of evacuation, or changes in the time required to accomplish evacuation.
- (d) The EEP must, at a minimum,
 - (1) Be written in language that is easily understood by the facility's operating personnel;
 - (2) Have a table of contents and general index;
 - (3) Have a record of changes;
 - (4) List the name, telephone number, and function of each person to be contacted under the EEP and state the circumstances in which that person should be contacted;
 - (5) List the facility's communications equipment, its available frequencies, and the communications schedules with shore installations, standby vessels, rescue aircraft, and other OCS facilities specified in the EEP;
 - (6) Identify the primary source of weather forecasting relied upon in implementing the EEP and state the frequency of reports when normal weather is forecasted, the frequency of reports when heavy weather is forecasted, and the method of transmitting the reports to the facility;
 - (7) Designate the individual on each facility covered by the EEP who is assigned primary responsibility for implementing the EEP;
 - (8) Designate those facility and shoreside support personnel who have the authority to advise the person in charge of the facility as to the best course of action to be taken and who initiate actions to assist facility personnel;
 - (9) Describe the recognized circumstances, such as fires or blowouts, and environmental conditions, such as approaching hurricanes or ice floes, in which the facility or its personnel would be placed in jeopardy and a mass evacuation of the facility's personnel would be recommended;
 - (10) For each of the circumstances and conditions described under paragraph (d)(9) of this section, list the pre-evacuation steps for securing operations, whether drilling or production, including the time estimates for completion and the personnel required;
 - (11) For each of the circumstances and conditions described under paragraph (d)(9) of this section, describe the order in which personnel would be evacuated, the transportation resources to be used in the evacuation, the operational limitations for each mode of transportation specified, and the time and distance factors for initiating the evacuation; and
 - (12) For each of the circumstances and conditions described under paragraph (d)(9) of this section, identify the means and procedures—

- (i) For retrieving persons from the water during an evacuation;
 - (ii) For transferring persons from the facility to designated standby vessels, lifeboats, or other types of evacuation craft;
 - (iii) For retrieving persons from designated standby vessels, lifeboats, or other types of evacuation craft if used; and
 - (iv) For the ultimate evacuation of all persons on the facility to land, another facility, or other location where the evacuees would be reasonably out of danger under the circumstance or condition being addressed.
- (e) The operator shall ensure that—
- (1) All equipment specified in the EEP, whether the equipment is located on or off of the facility, is made available and located as indicated in the EEP and is designed and maintained so as to be capable of performing its intended function during an emergency evacuation;
 - (2) All personnel specified in the EEP are available and located as specified in the EEP and are trained in fulfilling their role under the EEP; and
 - (3) Drills are conducted in accordance with § 146.125(c).
- (f) A complete copy of the EEP must be made available to the facility's operating personnel and a brief written summary of, or an oral briefing on, the EEP must be given to each person newly reporting on the facility.
- (g) A copy of the EEP must be on board each standby vessel, if any, designated in the EEP and provided to all shoreside support personnel, if any, specified in the EEP.

[CGD 84-098b, 54 FR 21572, May 18, 1989, as amended by USCG-1998-3799, 63 FR 35530, June 30, 1998]

Subpart C—Mobile Offshore Drilling Units

§ 146.200 Definitions.

For the purpose of this subpart:

Arrives on the OCS means when a MODU enters any OCS block area for the purpose of engaging in operations subject to the jurisdiction of the OCS Lands Act.

OCS block area means the names given by the Bureau of Ocean Energy Management, (BOEM) to define the OCS areas used to facilitate management or leasing on the OCS.

[USCG-2008-1088, 76 FR 2262, Jan. 13, 2011, as amended by USCG-2013-0797, 79 FR 36405, June 27, 2014]

§ 146.201 Applicability.

This subpart applies to mobile offshore drilling units engaged in OCS activities.

§ 146.202 Notice of arrival or relocation of MODUs on the OCS.

- (a) The owner of any mobile offshore drilling unit engaged in OCS activities shall, 14 days before arrival of the unit on the OCS or as soon thereafter as practicable, notify the District Commander for the area in which the unit will operate of:
 - (1) The unit's name, nationality, and designation assigned for identification under 30 CFR 250.37;
 - (2) The location and year that the unit was built;
 - (3) The name and address of the owner, and the owner's local representative, if any;
 - (4) Classification or inspection certificates currently held by the unit;
 - (5) The location and date that operations are expected to commence and their anticipated duration; and
 - (6) The location and date that the unit will be available and ready for inspection by the Coast Guard.
- (b) Once a unit is located on the OCS, the owner of the unit shall notify the District Commander before relocating the unit.
- (c) The information required in paragraphs (a) and (b) of this section may be provided by telephone or may be submitted together with, and need not repeat information contained in, applications and notices under 33 CFR part 67 for aids to navigation on the Outer Continental Shelf or 33 CFR part 135 for applications for certificate of financial responsibility.

§ 146.203 Requirements for U.S. and undocumented MODUs.

Each mobile offshore drilling unit documented under the laws of the United States and each mobile offshore drilling unit that is not documented under the laws of any nation must comply with the operating standards of 46 CFR part 109 when engaged in OCS activities.

§ 146.205 Requirements for foreign MODUs.

Each mobile offshore drilling unit that is documented under the laws of a foreign nation must, when engaged in OCS activities, comply with one of the following:

- (a) The operating standards of 46 CFR part 109.
- (b) The operating standards of the documenting nation if the standards provide a level of safety generally equivalent to or greater than that provided under 46 CFR part 109.
- (c) The operating standards for mobile offshore drilling units contained in the International Maritime Organization (IMO, formerly Inter-Governmental Maritime Consultative Organization or IMCO) (IMO) Code for the Construction and Equipment of Mobile Offshore Drilling Units (IMO Assembly Resolution A. 414(XI)) which has been incorporated by reference and the requirements of 46 CFR part 109 for matters not addressed by the Code.

§ 146.210 Emergency Evacuation Plan.

- (a) Except as otherwise provided in this section, the requirements applicable to Emergency Evacuation Plans (EEPs) on manned OCS facilities under § 146.140 are applicable to MODUs.
- (b) An EEP must be submitted by—

- (1) The holder of a lease or permit under the Act for each MODU within the area of the lease or the area covered by the permit; or
- (2) The operator under 30 CFR 250.2(gg), if other than the holder of a lease or permit, for each MODU within the area in which the operator controls or manages operations.
- (c) To avoid unnecessary duplication, the EEP may incorporate by reference pertinent sections of the MODU's operating manual required by 46 CFR 109.121.
- (d) In complying with § 146.140(d)(7), the EEP must designate the master or person in charge of the MODU under 46 CFR 109.107 as the individual who is assigned primary responsibility for implementing the EEP, as it relates to that MODU.

[CGD 84-098b, 54 FR 21573, May 18, 1989]

§ 146.215 Safety and Security notice of arrival for U.S. or foreign MODUs.

- (a) **General.** At least 96 hours before a MODU arrives on the OCS from a foreign port or place or from a different OCS block area to engage in OCS activities, excluding those U.S. MODUs arriving directly from a U.S. port or place or from an OCS block area, to engage in OCS activities, the owner or operator of the MODU, except as provided in paragraph (f) of this section, must submit the following information to the National Vessel Movement Center (NVMC):
 - (1) The location, latitude and longitude, of the MODU at the time the notice of arrival (NOA) is reported;
 - (2) The area designation, block number or lease number, assigned under 30 CFR 250.154 for identification, where the MODU owner or operator plans to perform OCS activities;
 - (3) The MODU's name and IMO number, if any;
 - (4) The date when operations of the MODU are expected to begin and end;
 - (5) Names of the last two ports or places visited and the associated dates of arrival and departure;
 - (6) The following information for each individual onboard:
 - (i) Full name;
 - (ii) Date of birth;
 - (iii) Nationality;
 - (iv) Passport number or marine documentation number (type of identification and number);
 - (v) Position or duties on the MODU; and
 - (vi) Name of the port, or place, and country where the individual embarked.
 - (7) The date of issuance of the MODU's International Safety Management certificate (ISM), if any, and Document of Compliance certificate and the name of the flag administration, or its recognized representative, that issued those certificates; and
 - (8) The date of issuance of the MODU's International Ship Security certificate (ISSC), if any, and the name of the flag administration, or the recognized security organization representing the flag administration, that issued the ISSC.

- (b) **Methods of submission.** The notice must be submitted to the National Vessel Movement Center (NVMC) by electronic Notice of Arrival and Departure format using methods specified in the NVMC's Web site at <http://www.nvmc.uscg.gov/>.
- (c) **Updates to a submitted NOA.** Unless otherwise specified in this section, whenever the most recently submitted NOA information becomes inaccurate, the owner or operator of the MODU must revise and re-submit the NOA within the times required in paragraph (e) of this section. An owner or operator does not need to revise or re-submit an NOA for the following:
 - (1) A change in submitted arrival time that is less than 6 hours;
 - (2) Changes in the location, latitude and longitude, of the MODUs from the location at the time the NOA was reported; or
 - (3) Changes to personnel positions or duties on the MODU.
- (d) **Required reporting time of an initial NOA.** The owner or operator of a MODU subject to this section must submit an initial NOA:
 - (1) If the voyage time is more than 96 hours, owners and operators of a MODU must submit an initial NOA at least 96 hours before the MODU arrives at the OCS location where the owner or operator plans to perform OCS activities; or
 - (2) If the voyage time is less than 96 hours, owners and operators of a MODU must submit an initial NOA at least 24 hours before the MODU arrives at the OCS location where the owner or operator plans to perform OCS activities.
- (e) **Required reporting time of an update to an NOA.** The owner or operator of a MODU subject to this section must submit an NOA update:
 - (1) If the most recently submitted NOA, or NOA update, differs by 24 hours or more from the current estimated time of arrival, the owner or operator of the MODU must provide an updated NOA as soon as practicable but at least 24 hours before the MODU arrives at the OCS location where the owner or operator plans to perform OCS activities; or
 - (2) If the most recently submitted NOA, or NOA update, differs by less than 24 hours from the current estimated time of arrival, the owner or operator of the MODU must provide an updated NOA as soon as practicable but at least 12 hours before the MODU arrives at the OCS location where the owner or operator plans to perform OCS activities.
- (f) **Towing vessels.** When a towing vessel controls a MODU required to submit an NOA under this subpart, the owner or operator of the towing vessel, or lead towing vessel if there is more than one, is responsible for submitting only one NOA containing the information required for the towing vessels, under § 146.405, and the MODU under paragraph (a) of this section.
- (g) This section does not apply to MODU's merely transiting the waters superjacent to the OCS and not engaged in OCS activities.

[USCG-2008-1088, 76 FR 2262, Jan. 13, 2011, as amended by USCG-2013-0797, 79 FR 36405, June 27, 2014]

Subpart D—Vessels, including MODUs—Notice of Casualty

Source: USCG-2013-1057, 91 FR 39484, June 30, 2026, unless otherwise noted.

§ 146.301 Applicability.

This subpart applies to vessels, including MODUs, engaged in OCS activities other than U.S. vessels already required to report marine casualties under 46 CFR part 4 or subpart D of 46 CFR part 109.

§ 146.303 Notice and written report of casualties.

The owner, operator, or person in charge of a vessel, including a MODU, engaged in OCS activities must ensure compliance with the notice of casualty requirements in 46 CFR part 4.

Subpart E—Vessels—Safety and Security Notice of Arrival

Source: USCG-2008-1088, 76 FR 2262, Jan. 13, 2011, unless otherwise noted.

§ 146.401 Applicability.

This subpart applies to all U.S. and foreign vessels, except those U.S. vessels traveling directly from a U.S. port or place, or from an OCS block area, bound for a place on the OCS and planning to engage in OCS activities. Vessels under this subpart include, but are not limited to, standby vessels, attending vessels, offshore supply vessels, pipelay vessels, derrick ships, diving support vessels, oceanographic research vessels, towing vessels, and accommodation vessels. This subpart does not apply to MODUs, which are covered under § 146.215; nor does it apply to floating facilities, which are covered under §§ 146.103 and 146.104.

[USCG-2008-1088, 76 FR 2262, Jan. 13, 2011, as amended by USCG-2013-0797, 79 FR 36405, June 27, 2014]

§ 146.402 Definitions.

For the purpose of this subpart:

Arrives on the OCS means when a vessel enters any OCS block area to commence operations for which it has submitted a Notice of Arrival under § 146.405(b)(2).

OCS block area means the names given by the Bureau of Ocean Energy Management, (BOEM) to define the OCS areas used to facilitate management or leasing on the OCS.

[USCG-2008-1088, 76 FR 2262, Jan. 13, 2011, as amended by USCG-2013-0797, 79 FR 36405, June 27, 2014]

§ 146.405 Safety and Security notice of arrival for vessels arriving at a place on the OCS.

- (a) **General.** The owner or operator of each vessel subject to this section must submit an initial NOA to the National Vessel Movement Center (NVMC):
 - (1) If the voyage time is more than 96 hours, at least 96 hours before the vessel arrives at a place on the OCS from a foreign port or place or from a different OCS block area to engage in OCS activities;
 - (2) If the voyage time is less than 96 hours and more than 24 hours, before departure, or;

- (3) If the voyage time is less than 24 hours, at least 24 hours before the vessel arrives at a place on the OCS.
- (b) **Information required in an NOA.** The following information is required from the owners or operators of vessels submitting an NOA:
 - (1) All the information specified in 33 CFR Table 160.206 with the exception of information required in items (2)(iii) through (2)(vi) and item (6). Item (8) is also not required except as pursuant to the laws on vessel entry (19 U.S.C. 1434) and clearance (46 U.S.C. 60105). Vessel owners and operators should protect any personal information they gather in preparing notices for transmittal to the NVMC so as to prevent unauthorized disclosure of that information;
 - (2) The area in which they are conducting their operations. This area can be submitted as either the name of the places, the BOEM block numbers, or the latitudes and longitudes of the places on the OCS where operations are being conducted; and
 - (3) If any person onboard, including a crewmember, is not required to carry a passport for travel, then passport information required in Table 160.206, items (4)(iv) through (vi), and (5)(iv) through (vi), need not be provided for that person.
- (c) **Updates to a submitted NOA.** Unless otherwise specified in this section, whenever the most recently submitted NOA information becomes inaccurate, the owner or operator of that vessel must revise and re-submit the NOA within the times required in paragraph (e) of this section. An owner or operator does not need to revise and re-submit an NOA for the following:
 - (1) A change in submitted arrival time that is less than 6 hours;
 - (2) Changes in the location, latitude and longitude, of the vessel from the location at the time the NOA was reported; or
 - (3) Changes to personnel positions or duties on the vessel.
- (d) **Methods of submission.** The notice must be submitted to the NVMC by electronic Notice of Arrival and Departure format using methods specified at the NVMC's Web site at <http://www.nvmc.uscg.gov/>.
- (e) **Required reporting time of an NOA update.** The owner or operator of each vessel subject to this section must submit an NOA update:
 - (1) If the most recently submitted NOA, or NOA update, differs by 24 hours or more from the current estimated time of arrival, the owner or operator of the vessel must provide an update as soon as practicable but at least 24 hours before the vessel arrives at the OCS location where the owner or operator plans to perform OCS activities;
 - (2) If the most recently submitted NOA, or NOA update, differs by less than 24 hours from the current estimated time of arrival, the owner or operator of the vessel must provide an update as soon as practicable but at least 12 hours before the vessel arrives at the OCS location where the owner or operator plans to perform OCS activities; or
 - (3) If the remaining voyage time is less than 24 hours, the owner or operator of the vessel must provide an update as soon as practicable, but at least 12 hours before the vessel arrives at a place on the OCS.

- (f) **Towing vessels.** When a towing vessel controls a vessel required to submit an NOA under this subpart, the owner or operator of the towing vessel, or lead towing vessel if there is more than one, is responsible for submitting only one NOA containing the information required for the towing vessels and the vessel under its control.
- (g) This section does not apply to vessels merely transiting the waters superjacent to the OCS and not engaged in OCS activities.

[USCG-2008-1088, 76 FR 2262, Jan. 13, 2011, as amended by USCG-2013-0797, 79 FR 36405, June 27, 2014]